

Terms and Conditions

- A. The named business (hereafter known as "Advertiser"), by its acceptance of this contract effective as of the signature date agrees that the following conditions will govern the course of dealings between Advertiser and IndoorMedia (hereafter known as "Distributor").
- B. No Verbal Agreement(s) apply. Any changes to this agreement(s) must be in writing, initialed and accepted by Distributor.
- C. Distributor cannot guarantee any advertising performance or level of response. No verbal estimate as to effectiveness should ever be interpreted as a guarantee of results.
- D. This contract is non-cancellable by Advertiser.
- E. Within 30 days of receiving contract/s, Advertiser will receive a "Welcome/Verification" email from Distributor (unless otherwise directed by Advertiser or Distributor's Marketing Representative). The purpose is to verify the accuracy of your contract/s as it pertains to store location/s, terms, conditions etc. as well as to provide contact information for your art coordinator and Distributor's customer care department.
- F. Advertiser agrees to provide ad copy to Distributor in accordance with the deadline established by Distributor. If Advertiser fails to furnish ad copy, or fails to respond to proof by the stated deadline, the ad copy will print as is. Advertiser warrants ad copy does not infringe upon the copyright of any third party, nor is it libelous, scandalous or invades any rights of any party. Advertiser acknowledges that the color content of advertisements is subject to slight variances.
- G. AD OWNERSHIP - Your ad design and any created logo is a product of Distributor's artists' creative abilities (unless it was provided to us by you or your agency) and it is the property of Distributor. The use of the ad and/or logo for any other purpose is strictly forbidden. You may purchase the ownership of your ad for \$200, and/or created logo for \$300. If purchased, the ads and/or logo will be yours to do with as you wish. The artwork will be saved in several different formats, including layered files, which will allow for manipulation by other artists who may need to modify the artwork.
- H. Distributor may at their option, publish Advertiser's ad on the internet or mobile app during the length of the contract.
- I. All invoices are due upon receipt. Advertiser agrees to pay a service charge of \$10 per month on invoices over (30) thirty days past due. A \$25 fee will apply for returned checks and/or ACH. A \$44 fee will apply for manual invoice processing. Should an ACH or Auto Credit Card payment be declined during the length of the sales contract, Distributor reserves its right to charge the past due amount, at any time, through the duration of contract. If it becomes necessary for Distributor to place Advertiser's account with attorneys for collection efforts, Advertiser agrees to pay all costs of collection, including reasonable attorney fees.
- J. In the event Advertiser sells or assigns their business it is agreed that the Advertiser will pay into escrow the full amount owed under this contractual agreement with the instruction to remit the aforementioned escrow upon closing directly to Distributor at the address listed on this contract.
- K. It is agreed that in the event any action is brought to enforce or interpret the provisions of this contract, only a court located in Harris County, Texas shall have jurisdiction to hear such matters. The validity of this contract and the rights and duties of the parties hereunder shall be governed under the laws of the State of Texas.
- L. Any renewal contract that comes in with a past due balance is subject to forfeiture of deposit and cancellation of renewal.
- M. Distributor reserves the right to transfer advertisement to the nearest available location in the event the original agreed upon location closes or becomes unavailable for installation of advertisement.
- N. Unless stated in writing, in this contract, all advertising is non-exclusive as to the type or category of business, not precluding advertising in other areas of the store. If the exclusive box is checked on page 1, advertising of the same type or category may still appear on other areas of shopping carts or other locations in the store.
- O. Upon receipt of proof, Advertiser agrees to respond with changes / corrections within five (5) days. If no response, Distributor is authorized to display the advertisement as per proof. Changes to proof/printed advertisement after 5 days from first proof will incur additional production charges.
- P. Start date is approximate. If for any reason, there is a delay in distribution, Advertiser agrees to an extension to compensate for the value of lost time. The register tape program will run a guaranteed minimum of 84 days per quarter for the number of quarters specified for each store.
- Q. Distributor reserves the right to reject this contract in part or whole upon receipt and subsequent review by corporate personnel.
- R. Make all checks payable to IndoorMedia, NO CASH PAYMENTS. Bank/Credit card statements and receipts will read "IndoorMedia".
- S. Electronic Signature Agreement: By selecting the "I Accept" button, you are signing this Agreement electronically. You agree your electronic signature is the legal equivalent of your manual signature on this Agreement. By selecting "I Accept" you consent to be legally bound by this Agreement's terms and conditions. You further agree that your use of a key pad, mouse or other device to select an item, button, icon or similar act/action, or to otherwise provide IndoorMedia Inc. (hereafter referred to as the "Company" or in accessing or making any transaction regarding any agreement, Signature, consent terms, disclosures or conditions constitutes your signature (hereafter referred to as "E-Signature"), acceptance and agreement as if actually signed by you in writing. You also agree that no certification authority or other third-party verification is necessary to validate your E-Signature and that the lack of such certification or third-party verification will not in any way affect the enforceability of your E- Signature or any resulting contract between you and IndoorMedia Inc. You also represent that you are authorized to enter into this Agreement for all persons who own or are authorized to access any of your accounts and that such persons will be bound by the terms of this Agreement. You further agree that each use of

your Signature constitutes your agreement to be bound by the terms and conditions of the contract.

T. Consent to Electronic Delivery: You specifically agree to receive and/or obtain "Electronic Communications" from IndoorMedia Inc. The term "Electronic Communications" includes, but is not limited to, any and all current and future notices and/or disclosures that various federal and/or state laws or regulations require that we provide to you, as well as such other documents, statements, data, records and any other communications regarding your relationship to IndoorMedia Inc. You acknowledge that, for your records, you are able to retain IndoorMedia Inc.'s Electronic Communications by printing and/or downloading and saving this Agreement and any other agreements and Electronic Communications, documents, or records that you agree to using your E-Signature. You accept Electronic Communications provided via your account with the IndoorMedia Inc. as reasonable and proper notice, for the purpose of any and all laws, rules, and regulations, and agree that such electronic form fully satisfies any requirement that such communications be provided to you in writing or in a form that you may keep.

U. Valid and current email address, notification and updates: Your current valid email address is required in order for you to obtain Electronic Communications from the Company. You agree to keep IndoorMedia Inc. informed of any changes in your email address. You may modify your email address by notifying an IndoorMedia Inc. representative. IndoorMedia Inc. may notify you through email when an Electronic Communication or updated agreement pertaining to your account is available.

V. Paper version of Electronic Communications: You acknowledge and agree that you may request a paper version of the contract or other documents by printing or saving a copy of the linked file on this page or by contacting a Company representative.

W. Revocation of electronic delivery: You have the right to withdraw your consent to receive/obtain communications via your account with the Company at any time. You acknowledge that the Company reserves the right to restrict or terminate your access to your account with the Company if you withdraw your consent to receive Electronic Communications. If you wish to withdraw your consent, contact us at 888-475-0993.

X. Hardware, software and operating system: You are responsible for installation, maintenance, and operation of your computer, browser and software. The Company is not responsible for errors or failures from any malfunction of your computer, browser or software. The Company is also not responsible for computer viruses or related problems associated with use of an online system. We require, at minimum, a functioning modern web browser that was released in the past two years (such as a recent version of Microsoft Edge, Google Chrome, Mozilla Firefox, or Safari) running on an up-to-date operating system (such as Windows 10, OS X Mojave, etc.). Unsupported browsers may not receive full functionality of the product. For example, we support Apple's Safari browser on macOS Mojave or High Sierra (both updated within the past two years), but not Internet Explorer on Windows 8, as Internet Explorer is no longer supported or being updated by Microsoft.

Y. Controlling Agreement: This Agreement supplements and modifies other agreements that you may have with the Company. To the extent that this Agreement and another agreement contain conflicting provisions, the provisions in this agreement will control (with the exception of provisions in another agreement for an electronic service which provisions specify the necessary hardware, software and operating system, in which such other provision controls). All other obligations of the parties remain subject to the terms and conditions of any other agreement. It is recommended that you print a copy of this Agreement for future reference.

Z. Sales Tax: Sales tax is estimated. Actual tax may vary at time of payment.

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